



Notification Waiver Determination

Direct Couriers – Phoenix Transport

Acquisition	Direct Couriers (Aust) Pty Ltd, a wholly owned subsidiary of Direct Couriers Group Pty Ltd (Direct Couriers), applied for a notification waiver in respect of its acquisition of 100% of the shares in Phoenix Transport Holdings Pty Ltd and its wholly owned subsidiary, Phoenix Distribution (NSW) Pty Ltd (together, Phoenix Transport), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 June 2026

Parties to the Acquisition	The acquirer, Direct Couriers, is an Australian provider of business-to-business courier, interstate delivery, and warehousing services. It services logistics, freight forwarder, commercial, and retail customers across Australia and New Zealand, and operates a number of sub-brands including 'Direct Cold' and 'Direct Road'. Direct Couriers focuses on same day point-to-point services. Phoenix Transport is also an Australian-headquartered provider of business-to-business courier, interstate delivery, and warehousing services. It operates in New South Wales and Queensland, with coverage primarily limited to Brisbane and Sydney. Phoenix Transport services a mix of logistics, retail, and commercial customers, with a stronger focus on third-party warehousing and distribution, large-scale heavy-freight dedicated hire work, and on-transport for warehouse relocations and other similar project work. Both parties supply courier and interstate delivery services in Queensland and New South Wales.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: the parties' combined share of supply of courier and interstate delivery services in Queensland, New South Wales, and nationally is estimated to be low and the increase in share arising from the Acquisition would be small

	b. there are alternative suppliers of courier and interstate delivery services in Queensland, New South Wales, and nationally. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act